



**PUBLIC WORKS DEPARTMENT**  
2101 O'Neil Avenue  
Cheyenne, Wyoming 82001

A COMMUNITY OF CHOICE

## **MEMORANDUM**

To: Mayor Orr, City Council

From: Nathan Beauheim, P.E., Transportation Administrator

Subject: Sole Source Purchase of Traffic Signal Software and Hardware from AM Signal

Date: May 9, 2018

Attached for consideration is a sole source purchase of traffic signal software and hardware from AM Signal, Inc. of Littleton, CO. The primary reason for procuring the system in this fashion is to maintain consistency with WYDOT, who purchased this system late last year after engaging in a nearly year-long procurement process.

The procurement process for WYDOT began with initial presentations from interested vendors based on a set of system requirements created by WYDOT. After the initial presentations, selected vendors were invited to demonstrate their wares during a 30-day on-street trial on Grand Ave. in Laramie. The selected vendors were then invited to bid head-to-head on supplying the various system components. AM Signal was the successful vendor from that process to supply the MaxView/MaxTime system and associated hardware from Intelight. As is typical within the traffic industry, AM Signal is the only vendor authorized to sell Intelight products within their geographic territory.

This procurement consists of the following components:

MaxView software – this software resides on the City servers and is the component that allows the City to remotely monitor and program traffic signals across the City. This software also includes a number of capabilities that the City currently lacks, such as the ability to automatically generate alerts of faults, better logging of events, and significantly more analytics. We are proposing to acquire licenses for 80 intersections, which is sufficient to cover all current and planned signals with a few left over. The quote also establishes pricing for up to ten years of maintenance and support.

MaxTime software – this software resides on the controller at the individual intersections. While a set of protocols exists (known as NTCIP) that are supposed to allow equipment from different manufacturers to work together, in

practice full utilization of features requires purchase of the full suite of products from a given manufacturer. The software the City is currently using is no longer being supported by the manufacturer, so this upgrade is timely from that perspective as well.

2070LDX Controllers – this hardware resides at the individual intersections. These twenty-two controllers are state of the art and will be used to upgrade the most critical intersections.

2070-1C Module – this hardware will be used to upgrade older controllers to run the new controller software. This is necessary as the older controllers run OS9 as their operating system while the new controller software requires Linux.

NEMA X3L Controllers – this hardware resides at the individual intersections. These will be used to upgrade the hardware at intersections with older control equipment. We investigated several different methods of upgrading the existing controllers without success before deciding to purchase new equipment.

Should this contract be approved, AM Signal proposes to have all equipment delivered, software installed, and the system running by September 30, 2018.



**Re:** Distribution of Intelight, Inc. Products within the State of Wyoming

**Date:** 5/3/2018

To whom it may concern,

I would like to confirm that AM Signal, Inc. is the exclusive provider of both Intelight hardware and software products and all associated services to all agencies within the State of Wyoming including but not limited to: the MAXTIME Local Controller Software Suite, the MAXVIEW Central System Software Suite, NEMA and 2070 Style Traffic Signal Controllers, misc. software and hardware associated with Traffic Signal and ITS Device control.

If you have any further questions regarding the distribution of Intelight products within the State of Wyoming, or in any other agency within the region, please contact me at [tom.stiles@intelight-its.com](mailto:tom.stiles@intelight-its.com) or on my cell phone: 801.440.1174.

Regards,

A handwritten signature in blue ink, appearing to read "Tom Stiles", is written over a horizontal line.

Tom Stiles, P.E. PTOE  
Vice President of Sales  
Intelight, Inc.

Approved as to  
form only:



Date: 5/4/18

City Contract # \_\_\_\_\_

**SERVICES AGREEMENT**  
for  
**MaxView Software for Intersections**

THIS AGREEMENT is made and entered into this \_\_\_\_\_ day of \_\_\_\_\_, 2018, by and between the City of Cheyenne, a municipal corporation organized under the laws of the State of Wyoming, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and AM Signal, Inc., located at 8100 Southpark Way, Unit A-10, Littleton, Colorado 80120 ("Contractor").

**RECITALS**

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK.**

The Contractor agrees to provide services as described in Section 4 and in accordance with Exhibit A, attached hereto and incorporated herein by reference.

2. **TIME OF PERFORMANCE.**

The services included herein will be completed by September 30, 2018. Maintenance and standard update assistance shall terminate on December 31, 2020.

3. **COMPENSATION.**

In consideration of the services to be performed pursuant to this Agreement, the Contractor will bill the City and the City agrees to pay Contractor a not to exceed amount of Two Hundred Forty-Seven Thousand One Hundred Fifty-Eight Dollars and Fifty-Six Cents (\$247,158.56) as stated in Exhibit A.

4. **CONTRACTOR RESPONSIBILITY.**

In providing services under this Agreement, the Contractor shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances at the same time and in the same or similar locality. Upon notice to the Contractor and by mutual agreement between the parties, the Contractor will, without additional compensation, correct those services not meeting such a standard.

Contractor shall:

- a. Supply and install on City provided servers MaxView software;
- b. Provide eighty (80) licenses of MaxTime 2.0 (or later version) software. Software shall be pre-loaded on all controllers and 2070-1C CPU modules supplied under this Agreement. Software shall also be provided on flash drive or similar for the City to load onto future controllers;
- c. Convert controller programming from NWS Voyage format to MaxTime format for sixty-eight (68) intersections;

- d. Provide twenty-two (22) 2070LDX Controllers per the latest Wyoming Department of Transportation specifications;
- e. Provide twenty (20) 2070-1C CPU Modules;
- f. Provide twenty-seven (27) NEMA X3L ATC TS-2 Type Controllers;
- g. Provide system maintenance and standard updates for two (2) years from the date of acceptance of the system;
- h. Provide at least eight (8) hours of on-site training, split between various products as Contractor determines appropriate; and
- i. Deliver complete equipment and install system no later than one hundred twenty (120) calendar days after execution of this Agreement.

5. CITY'S RESPONSIBILITIES.

City shall:

- a. Supply all servers;
- b. Supply all communications between the server location and intersections;
- c. Supply all controllers to be upgraded;
- d. Load and install all controllers; and
- e. Install all 2070-1C CPU modules.

6. COMPLIANCE WITH LAWS.

The parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

7. DRUG-FREE WORKPLACE.

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City employees. All architects, engineers and other contractors under contract with City of Cheyenne, and their employees and sub-contractors, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Contractor while performing the duties and responsibilities of the Agreement. It is the responsibility of the Contractor to familiarize themselves with the requirements of this policy and to inform all their employees and sub-contractors of the requirements and ensure their compliance. If the Contractor, their employees or sub-contractors are found in violation of this policy, the Agreement may be terminated.

8. INDEMNIFICATION/HOLD HARMLESS.

The Contractor agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Contractor's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Contractor, or its employees or sub-contractors in the performance of this Agreement. The Contractor acknowledges that it may incur a financial obligation to the City pursuant to the terms of this section.

9. **INSURANCE REQUIREMENTS.**

The Contractor must provide proof of the following insurance coverages:

**Commercial General Liability Insurance**

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

If this coverage is provided pursuant to a "claims made" policy:

- a. Contractor shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Contractor begins the provision of services under this Agreement; and
- b. In the event the Contractor's services extend into a future policy period, the Contractor shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Contractor will provide services under this Agreement; and
- c. Contractor shall maintain said "claims made" coverage for a period of five (5) years following the last date that Contractor has provided services under this Agreement; and
- d. In the event the Contractor or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in sub-sections a., b., or c. of this section, the Contractor shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Contractor has provided services under this Agreement.

**Additional Insurance Information**

The Contractor shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies, and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Contractor shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Contractor to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Contractor shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Contractor's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

10. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES. 49 C.F.R. Part 26  
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.
11. MONTHLY REPORT.  
With every monthly billing, Contractor shall provide the City Public Works Department with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
12. INDEPENDENT CONTRACTOR.  
The Contractor shall function as an independent contractor for the purposes of this Agreement. The Contractor shall assume sole responsibility for any debts or liabilities that may be incurred by the Contractor in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Contractor or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
13. TAXES.  
The Contractor agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by and in connection with its operations under this Agreement.
14. DEFAULT.  
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
15. TERM AND TERMINATION.  
This Agreement shall be for a period of one hundred twenty (120) days, ending on September 30, 2018. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty (30) days' written notice to the Contractor, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Contractor shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Contractor in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Contractor for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. REMEDIES.

In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:

- a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
- b. Treat the Agreement as continuing and require specific performance.

17. ADDITIONAL REMEDIES.

In the event the Contractor fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Contractor. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

18. GOVERNING LAW, JURISDICTION AND VENUE.

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

19. GOVERNMENTAL IMMUNITY.

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retain all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental immunity shall be construed in favor of governmental immunity.

20. MONITORING ACTIVITIES.

The City shall have the right to monitor all activities related to this Agreement that are performed by the Contractor or its sub-contractors. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and contractors on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

21. NON-DISCRIMINATION.

The Contractor shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. ENTIRETY OF AGREEMENT.

This Agreement consisting of six (6) pages and Exhibit A consisting of two (2) pages, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

CITY OF CHEYENNE

(SEAL)

By: \_\_\_\_\_  
Marian J. Orr, Mayor

Attest:

\_\_\_\_\_  
Carol Intlekofer, City Clerk

Date: \_\_\_\_\_

CONTRACTOR

By: \_\_\_\_\_

Print Name: \_\_\_\_\_

Date: \_\_\_\_\_

# EXHIBIT A

AM Signal, Inc.  
8100 Southpark Way, Unit A-10  
Littleton CO 80120  
Ph: 720-348-6925 Fx: 720-348-6950

| Date     | Estimate # |
|----------|------------|
| 6/1/2018 | 2831       |

| Bill To                                            |
|----------------------------------------------------|
| Cheyenne<br>1223 Logan Avenue<br>Cheyenne WY 82001 |

| Ship To                                                             |
|---------------------------------------------------------------------|
| Traffic Shops<br>Cheyenne<br>1223 Logan Avenue<br>Cheyenne WY 82001 |

| SO Type  | Contract # | Terms  | FOB    | Expires  | Primary Sales |
|----------|------------|--------|--------|----------|---------------|
| Standard |            | Net 30 | Origin | 6/1/2018 | Wes Hood      |

### Notes

| Item Number... | Quantity | Item                 | Description                                                                                                                               | Rate     | Amount    |
|----------------|----------|----------------------|-------------------------------------------------------------------------------------------------------------------------------------------|----------|-----------|
| 1              | 22       | INT YCT-2070-LDX (S) | 2070LDX CONTROLLER, LINUX OPERATING SYSTEM, 16 LINE X 40 CHARACTER LCD DISPLAY SCREEN, W/DATAKEY, 4-PORT ETHERNET SWITCH, 7-SERIAL PORTS  | 2,324.00 | 51,128.00 |
| 2              | 27       | INT YCT-X3L-2 (S)    | X3L BASE LEVEL NEMA ATC TS-2 TYPE 2 (PARALLEL A, B, C, D), 16 LINE MONO TEXT DISPLAY, 2 ETHERNET PORTS, INCLUDES MAXTIME SOFTWARE LICENSE | 2,074.28 | 56,005.56 |
| 3              | 20       | INT YCT-1C-CPU       | 2070-1C CPU MODULE                                                                                                                        | 850.00   | 17,000.00 |
| 4              | 53       | INT YSW-MT-LICENSE   | MaxTime License                                                                                                                           | 425.00   | 22,525.00 |
| 5              | 80       | INT                  | Maxview Software License                                                                                                                  | 1,150.00 | 92,000.00 |

AM Signal, Inc.  
8100 Southpark Way, Unit A-10  
Littleton CO 80120  
Ph: 720-348-6925 Fx: 720-348-6950

| Date     | Estimate # |
|----------|------------|
| 6/1/2018 | 2831       |

| Item Number... | Quantity | Item                      | Description                                                                                                                                                                                                                                                                           | Rate                     | Amount       |
|----------------|----------|---------------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|--------------------------|--------------|
| 6              | 1        | YSW-MV-LICENSE<br>Service | Maintenance for year 1 and 2 included<br>in the system price<br><br>Year 3 \$16,500.00<br>Year 4 \$16,850.00<br>Year 5 \$17,200.00<br>Year 6 \$17,550.00<br>Year 7 \$17,900.00<br>Year 8 \$18,250.00<br>Year 9 \$18,600.00<br>Year 10 \$18,950.00<br><br>Does not include Cartegraph. | 0.00                     | 0.00         |
| 7              | 68       | Service                   | \$125 per database conversion                                                                                                                                                                                                                                                         | 125.00                   | 8,500.00     |
|                |          |                           |                                                                                                                                                                                                                                                                                       | Subtotal                 | 247,158.56   |
|                |          |                           |                                                                                                                                                                                                                                                                                       | Shipping Cost (Best Way) | 0.00         |
|                |          |                           |                                                                                                                                                                                                                                                                                       | Total                    | \$247,158.56 |

Quote valid for 30 days. Restock fees may apply for returned materials.

Seller reserves the right to make an equitable adjustment by providing Buyer with new unit pricing if the Buyer's Purchase Order includes a variation in the quantity of any item from the time it was quoted on the Seller's Estimate.



2831